

Court No. - 22

Case :- CRIMINAL REVISION No. - 3907 of 2006

Revisionist :- Paschimanchal Vidyut Vitran Nigam Ltd. Thru. Sub. Div. Offic

Opposite Party :- Sri. Mohd. Kasim & Another

Counsel for Revisionist :- A.K.Mehrotra

Hon'ble Amar Singh Chauhan,J.

On the request of learned A.G.A. list in the next cause list.

Order Date :- 8.7.2016

R./

Court No. - 45

Case :- CRIMINAL REVISION No. - 3907 of 2006

Revisionist :- Paschimanchal Vidyut Vitran Nigam Ltd. Thru. Sub. Div. Offic

Opposite Party :- Sri. Mohd. Kasim & Another

Counsel for Revisionist :- A.K.Mehrotra

Counsel for Opposite Party :- A.G.A.

Hon'ble Siddharth,J.

List has been revised. No one appears on behalf of the revisionist to press this revision.

Heard learned A.G.A. appearing for the State.

This revision has been filed against the judgement and order dated 30.3.2006 passed by the Additional District and Sessions Judge court no.4, Moradabad, whereby application of the accused for dismissing the complaint case no. 47 of 2005 on the ground of maintainability has been allowed and the proceedings under section 135 of Electricity Act 2003 has been closed.

Perusal of the judgement and order of the court below shows that it has recorded the finding that proceedings against the accused under the Electricity Act 2003 and Electricity Supply Code 2005 can not proceed rather proceedings should have been initiated under the Electricity Reforms Act 1999 and Electricity Code, 2002.

In view of the above impugned judgement and order does not suffers from any illegality, infirmity or jurisdictional error requiring any interference by this court. The revision lacks merit and is liable to be dismissed.

Accordingly the revision is accordingly dismissed

Order Date :- 20.8.2018

Atul kr. sri.